

**UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE DIRECTOR OF THE
UNITED STATES PATENT AND TRADEMARK OFFICE**

In the Matter of	)	
	)	
Tamar Toledano,	)	Proceeding No. D2025-07
	)	
Respondent	)	
_____	)	

FINAL ORDER

The Acting Deputy General Counsel for Enrollment and Discipline and the Acting Director of the Office of Enrollment and Discipline (“OED Director”) for the United States Patent and Trademark Office (“USPTO” or “Office”) and Tamar Toledano (“Respondent”) have submitted a Proposed Settlement Agreement (“Agreement”) to the Acting Under Secretary of Commerce for Intellectual Property and Acting Director of the United States Patent and Trademark Office (“USPTO Director”) for approval.

The Agreement, which resolves all disciplinary action by the USPTO arising from the Joint Stipulated Facts set forth below, is hereby approved. This Final Order sets forth the parties’ stipulated facts, legal conclusions, and sanctions.

Jurisdiction

1. At all times relevant hereto, Respondent of New York, New York, was an attorney admitted to practice in New York and currently in good standing. Respondent, at all times relevant to this matter, was engaged in practice before the Office in trademark matters. Respondent is subject to the USPTO Rules of Professional Conduct, 37 C.F.R. § 11.101 *et seq.*
2. The USPTO Director has jurisdiction over this matter pursuant to 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26.

Legal Background

The U.S. Counsel Rule

3. Foreign-domiciled trademark applicants or registrants must be represented before the USPTO by an attorney who is licensed to practice law in the United States. *See* 37 C.F.R. § 2.11(a); *Requirement of U.S. Licensed Attorney for Foreign Trademark Applicants and Registrants*, 84 Fed. Reg. 31498 (July 2, 2019) (“the U.S. Counsel Rule”).
4. A policy objective of the U.S. Counsel Rule is to instill greater confidence in the public that U.S. registrations issued to foreign applicants are not subject to invalidation for reasons such as improper signatures. *See* 84 Fed. Reg. 31507.

5. The U.S. Counsel Rule's requirement for U.S. licensed attorneys — who have ethical obligations to the USPTO and to their trademark clients — was intended to (a) increase compliance with U.S. trademark law and USPTO regulations; (b) improve the accuracy of trademark submissions to the USPTO; and (c) safeguard the integrity of the U.S. trademark register. *See generally id.*

6. The USPTO has published ample information about the U.S. Counsel Rule. *See, e.g., Requirement of U.S. Licensed Attorney for Foreign Trademark Applicants and Registrants*, 84 Fed Reg, 31498 (Final Rule) (July 2, 2019); 37 C.F.R. § 2.11 (requirement for representation); Trademark Manual of Examining Procedure § 601 (Requirement for Representation Based on Domicile of Mark Owner).

USPTO Trademark Signature Rules and TMEP Direction

7. The USPTO trademark signature rules require that all signatures be personally entered by the named signatory and that a person electronically signing a document through the Trademark Electronic Application System ("TEAS") must personally enter any combination of letters, numbers, spaces, and/or punctuation marks that he or she has adopted as a signature, placed between two forward slash ("/") symbols in the signature block on the electronic submission. *See* 37 C.F.R. § 2.193(a) and (c), and 37 C.F.R. § 11.18(a).

8. The USPTO publishes online and regularly updates its Trademark Manual of Examining Procedure ("TMEP") (<https://fqt-tmep.etc.uspto.gov/RDMS/TMEP/current>). The TMEP provides trademark practitioners, *among other things*, with a reference work on the practices and procedures relative to prosecution of applications to register marks in the USPTO.

9. At all relevant times, unequivocal direction from the USPTO identified the proscription against any person other than the named signatory signing electronically trademark documents filed with the USPTO:

All documents must be properly signed. 37 C.F.R. §§ 2.193(a), 11.18(a).

The person(s) identified as the signatory must personally sign the printed form or personally enter the signatory's electronic signature, either directly on the trademark electronic filing system's form or in the emailed form. 37 C.F.R. §2.193(a), (d).

A person may not delegate their authority to sign, and no person may sign or enter the name of another. *See In re Zhang*, 2021 TTAB LEXIS 465, at *10, *13 (Dir USPTO 2021) (sanctions); *In re Dermahose Inc.*, Ser. No. 76585901, 2007 TTAB LEXIS 25, at *9 (2007); *In re Cowan*, Reg. No. 1225389, 1990 Commr. Pat. LEXIS 24, at *6(Comm'r Pats. 1990).

Just as signing the name of another person on paper does not serve as the

signature of the person whose name is written, typing the electronic signature of another person is not a valid signature by that person.

Similarly, another person may not use document-signing software to create or generate the electronic signature of the named signatory.

TMEP § 611.01(c) (November 2024) (paragraph spacing added).¹

10. A trademark submission that is signed by a person other than the named signatory is improperly executed and cannot be relied upon to support registration. *See In re Yusha Zhang*, 2021 Commr. Pat. LEXIS 2 at *10 (Dir. USPTO 2021); *Ex parte Hipkins*, Appeal No. 90-2250, 1991 Pat. App. LEXIS 14, at *10-13 (BPAI 1991); *In re Cowan*, Reg. No. 1225389, 1990 Commr. Pat. LEXIS 24, at *5-6 (Comm’r Pats. 1990).

11. A signature that does not meet the “personally signed” or “personally entered” requirements, *see* 37 C.F.R. §§ 2.193(a), (f), 11.18(a), “may jeopardize the validity of [an] application or registration.” 37 C.F.R. § 2.193(f).

12. The USPTO trademark signature rules are substantive requirements, not mere “technical” ones. *See In re Stelcore Management Services LLC*, 2025 Comm’r. Pat. at *3 (Final Order for Sanctions June 13, 2025).

13. Trademark applications contain declarations that are signed under penalty of perjury, with false or fraudulent statements being subject to punishment under 18 U.S.C. § 1001. Signatories to declarations in trademark applications make specific representations regarding applicants’ use of the mark in commerce and/or their intent to use the mark in commerce. The USPTO relies on such declarations signed under penalty of perjury in trademark applications in the course of examining trademark applications and issuing registrations. *In re Hao*, Proceeding No. D2014-14, p.5 at ¶ 21, p. 9 at ¶ I. (USPTO April 27, 2022) (practitioner violated § 11.804(d) by, *inter alia*, allowing others to sign practitioner’s name on trademark documents, including declarations, filed with the USPTO with the knowledge that the USPTO would rely on such trademark documents in examining applications and issuing registrations).

14. “Submitting a document that includes false, misleading, fictitious, or fraudulent information or representations violates 37 C.F.R. § 11.18(b)(1). This includes, for example, false or misleading domicile information, attorney information, signatory information (e.g., where the named signatory did not personally enter his or her signature on the document), applicant information, or claims of use (or intent to use). Submitting a document without undertaking a reasonable inquiry into the factual basis for the averments, without evidentiary support, in an effort to circumvent USPTO Rules, or coupled with other rule or Terms of Use violations constitutes an improper purpose and violates 37 C.F.R. § 11.18(b)(2).” *In re Stelcore Management Services, LLC*, *supra*, at *6.

¹ Previous versions published in May 2024, November 2023, July 2022, July 2021, and October 2018 (with similar language).

Joint Stipulated Facts

15. Respondent was admitted to practice law in the State of New York on February 26, 2021 (Registration No. 5781505).
16. At all relevant times, from July 2022 through March 2024, Respondent represents that she was the sole founder and attorney at her law firm, Trademark 360°, which she formed in July 2022.
17. Respondent represents that after completing a 3-week comprehensive trademark course, and spending approximately 6 months (from July – December 2022) continuing to educate herself on trademark matters and relevant trademark law, she commenced representing clients in trademark matters in December 2022.
18. Respondent had little practical trademark experience prior to filing her first application filed in December of 2022.
19. Respondent did not know or fully understand the USPTO's trademark signature rule requirement that only the named signatory may enter the named signatory's signature on a trademark document.
20. By February 2024, Respondent was the attorney of record on approximately 4,800 total U.S. trademark applications.

Respondent Allowed Others to Sign Her Name to Trademark Documents Filed with the Office

21. Respondent received trademark referrals from online sources, such as UpWork, resulting in her affiliation with several foreign based companies that referred trademark clients to her.
22. Beginning in April 2023, Respondent was accepting referrals from the foreign-based company Zhengzhou Jingdai Network Technology Co., Ltd. (郑州鲸代网络科技有限公司) ("Jingdai/ZJNT") located in Zhengzhou Area (Zhengdong), Henan Pilot Free Trade Zone, China. Jingdai/ZJNT supplied Respondent with approximately 3,170 trademark matters through December 2023.
23. Respondent was also accepting referrals from the foreign-based company Twinsun Intellectual Property Office (雙盛智慧財產權事務所) ("Twinsun") located in Shenzhen, Guangdong, China, beginning in September 2023. Twinsun supplied Respondent with approximately 135 trademark matters through December 2023.
24. In addition, beginning in July 2023, Respondent was accepting referrals from the foreign based company Zhengzhou Kuabiaotong Technology Co., Ltd. (鄭州快標通科技股份有限公司) ("Kuabiaotong") located in Zhengzhou, Henan, China. Kuabiaotong supplied Respondent with approximately 906 trademark matters.

25. Following Respondent's review, Respondent instructed her non-attorney staff and employees of the above-mentioned China-based referral sources to enter her signature on trademark applications and other documents filed with the USPTO, including declarations presented to the USPTO, where she was identified in the documents as the named signatory.

26. Respondent failed to adequately or timely communicate with her clients referred by Jingdai/ZJNT, Twinsun, and Kuabiaotong regarding improper signatures on their trademark applications.

27. Respondent represents that she first learned of the personal signature rule on or around January 4, 2024. On January 16, 2024, she wrote to the Deputy Commissioner for Trademark Examination Policy to notify the USPTO about the lack of compliance with the personal signature requirement of 37 C.F.R. 2.193(c) with respect to 401 trademark applications and 9 renewal applications (the "First Notice Letter"). Respondent's First Notice Letter stated that she believed she was permitted, as an attorney, to authorize another to sign the documents on her behalf after she had reviewed and approved the document before submission. Respondent apologized to Trademark Policy. Respondent's First Notice Letter provided the Trademark Policy Office with a list of the 410 trademark documents where she had not personally entered her signature. Respondent now acknowledges that her belief that she was permitted to authorize another to sign the documents on her behalf was incorrect.

28. On February 28, 2024, Respondent wrote to the Deputy Commissioner for Trademark Examination Policy to notify the USPTO about the lack of compliance with the personal signature requirement of 37 C.F.R. 2.193(c) with respect to an additional 2,316 trademark applications (the "Second Notice Letter"). Respondent's Second Notice Letter provided the Trademark Policy Office with a list of the 2,316 trademark documents where she had not personally entered her signature.

Failure to Communicate with Additional Clients Regarding Their Representation,
Failure to Obtain Informed Consent to be Paid by a Third Party, and
Failure to Timely Inform Clients about Brand Mark Protect's Fraudulent Scheme

29. Respondent represents that in December 2022, she came across a posting on the Upwork platform for a trademark specialist to draft and file trademark applications. UpWork identified the poster to be in Karachi, Pakistan. Respondent represents that she understood that UpWork was a reliable platform that vetted the organizations and users of its platform. This led to Respondent having had a business relationship with "Brand Mark Protect"² for approximately six (6) months from December 2022 through June 2023. Respondent represents that during the period of the business relationship, she was unaware of Brand Mark Protect's fraudulent scheme, which is discussed below.

² For the sake of clarity and consistency, this entity is referred to as "Brand Mark Protect" throughout this Final Order. "Brand Mark Protect," however, operated under various different names, only some of which Respondent is aware, including Trademark Supreme, Xpress Trademark, Trademark Pioneer, and Trademark Paramount.

30. In response to OED's request for the name, postal address, email address, and telephone for each third-party that referred more than 100 clients seeking U.S. trademark assistance, Respondent identified Brand Mark Protect as being tied to a phone number with a country dialing code of 92, which is generally known to be Pakistan, although she did not have a postal address for Brand Mark Protect to provide.

31. Brand Mark Protect operated a website located at www.brandmarkprotect.com. Brand Mark Protect also had different websites operating under different names, including: "Trademark Supreme," (www.trademarksupreme.com) "Xpress Trademark," (www.xpresstrademark.com) "Trademark Pioneer," (www.trademarkpioneer.com) and "Trademark Paramount." (www.trademarkparamount.com).

32. Brand Mark Protect paid Respondent for legal services she provided for clients referred to Respondent by Brand Mark Protect.

33. Respondent acknowledged that she never communicated with her Brand Mark Protect trademark applicant clients before filing their trademark applications. Instead, she communicated only with Brand Mark Protect and assumed that Brand Mark Protect was communicating with her clients. This assumption was based on her receiving information or responses to certain requests for information or documentation from Brand Mark Protect, such as specimens showing applicants' use of their trademarks in commerce or the applicants' domicile addresses.

34. Respondent did not inform her Brand Mark Protect trademark clients regarding the existence of an attorney-client relationship and further did not obtain the clients' informed consent to accept compensation from one other than the client (*i.e.*, from Brand Mark Protect).

35. As described below, Respondent also did not timely inform her trademark clients regarding Brand Mark Protect's scheme to defraud them after she learned of the scheme.

36. Between December 2022 and June 2023, Respondent handled approximately 259 trademark matters for clients referred to her by Brand Mark Protect, *i.e.*, trademark applicants referred to her to prepare and file U.S. trademark applications with the USPTO.

37. Respondent represents that to the best of her knowledge, the trademark applicant customers Brand Mark Protect referred to Respondent were domiciled in the United States. Those clients engaged Brand Mark Protect through one of its related websites (*i.e.*, Brand Mark Protect, Trademark Supreme, Xpress Trademark, Trademark Pioneer or Trademark Paramount).

38. On January 25, 2022, the USPTO issued a "Final Order for Sanctions" in *In re Abtach, Ltd., 360 Digital Marketing LLC, and Retrocube LLC*. ["Abtach"] predicated, in part, on evidence indicating that Abtach and the other respondents to the Final Order for Sanctions engaged in "an egregious scheme to deceive and defraud both the USPTO and individual applicants in more than 5,500 trademark applications."

39. Respondent informed OED that she became generally aware of the January 25, 2022,

Final Order for Sanctions issued by the USPTO Commissioner of Trademarks in *In re Abtach, Ltd., et al.* sometime in 2022 or 2023, when she first began practicing before the USPTO.

40. Brand Mark Protect was perpetrating a fraudulent scheme against trademark applicant customers, including Respondent's Brand Mark Protect-referred clients. However, Respondent represents that at no time prior to June 2023 was she aware that Brand Mark Protect was engaged in a fraudulent scheme aimed at U.S.-domiciled trademark applicants. Respondent represents that she did not become aware of the scheme during the course of her professional relationship with Brand Mark Protect until June 2023, and that she promptly terminated the relationship upon this information coming to her attention.

41. Respondent informed OED that she promptly severed her relationship with Brand Mark Protect in June 2023 when she developed "ethical concerns" after learning that it was providing inaccurate information to her as well as her clients.

42. Respondent did not directly contact a majority of her clients regarding Brand Mark Protect's scheme for approximately nine (9) months after severing her relationship with Brand Mark Protect.

43. Respondent represents that Brand Mark Protect had provided her with inaccurate email addresses for her Brand Mark Protect-referred clients.

44. On March 11, 2024, Respondent sent letters to the purported physical mailing address for her Brand Mark Protect clients alerting them to the scheme.

45. In the March 11, 2024 letter, Respondent stated that the company with which she collaborated, Brand Mark Protect, also operated under the following names: Trademark Supreme, Xpress Trademark, Trademark Pioneer, and Trademark Paramount.

46. Also, in the March 11, 2024 letter, Respondent explained that Brand Mark Protect's scheme included providing inaccurate filing fee quotes, fabricating deadlines and notices from the USPTO, and issuing fake registration certificates to create a false impression of completed trademark registrations.

Additional Considerations

47. Respondent has never been the subject of professional discipline by the USPTO, and she represents that she has not been subject to discipline by any court, or any state bar.

48. Prior to receiving the initial RFI from OED on February 16, 2024, Respondent first informed the USPTO's Deputy Commissioner for Trademark Examination Policy about 410 improper signatures and provided an itemized list of the associated filings. Respondent on February 28, 2024, informed Trademark Policy about 2,316 additional improper signatures and provided an itemized list of the associated filings.

49. Respondent represents that she severed all relationships with entities that referred China-domiciled trademark applicant clients, Upwork, and Brand Mark Protect promptly when becoming aware of the potential rule violations that could ensue.

50. Respondent represents that she implemented new identity protection procedures in her practice to ensure the quality of applications and further ensure everything submitted under her purview was for a proper purpose and to protect the integrity of the USPTO.

51. Respondent engaged in the utmost cooperation with OED during its investigation by, among other things, immediately acknowledging impermissibly signed signatures, participating in an interview, and providing supplemental responses to OED's requests for information.

52. Respondent is contrite and now acknowledges and understands the following about the USPTO signature rules:

- a. All documents must be properly signed. 37 C.F.R. §§ 2.193(a), 11.18(a);
- b. The person(s) identified as the signatory must personally sign the printed form or personally enter the signatory's electronic signature, either directly on the trademark electronic filing system's form or in the emailed form. 37 C.F.R. § 2.193(a), (d);
- c. A person may not delegate their authority to sign, and no person may sign or enter the name of another. *See In re Zhang*, 2021 TTAB LEXIS 465, at *10, *13 (Dir USPTO 2021) (sanctions); *In re Dermahose Inc.*, Ser. No. 76585901, 2007 TTAB LEXIS 25, at *9 (2007); *In re Cowan*, Reg. No. 1225389, 1990 Commr. Pat. LEXIS 24, at *6 (Comm'r Pats. 1990);
- d. Just as signing the name of another person on paper does not serve as the signature of the person whose name is written, typing the electronic signature of another person is not a valid signature by that person;
- e. Similarly, another person may not use document-signing software to create or generate the electronic signature of the named signatory;
- f. A trademark submission that is signed by a person other than the named signatory is improperly executed and cannot be relied upon to support registration. *See In re Yusha Zhang*, 2021 Commr. Pat. LEXIS 2 at *10 (Dir. USPTO 2021); *Ex parte Hipkins*, Appeal No. 90-2250, 1991 Pat. App. LEXIS 14, at *10-13 (BPAI 1991); *In re Cowan*, Reg. No. 1225389, 1990 Commr. Pat. LEXIS 24, at *5-6 (Comm'r Pats. 1990);
- g. A signature that does not meet the "personally signed" or "personally entered" requirements, *see* 37 C.F.R. §§2.193(a), (f), 11.18(a), "may jeopardize the validity of [an] application or registration." 37 C.F.R. §2.193(f); and
- h. The USPTO trademark signature requirements are not merely technical in nature but rather are substantive. *See In re Stelcore Management Services, LLC*, 2025

Joint Legal Conclusions

53. Respondent acknowledges that, based on the information contained in the Joint Stipulated Facts above, Respondent's acts and omissions violated the following provisions of the USPTO Rules of Professional Conduct:

- a. 37 C.F.R. § 11.101 (failing to provide competent representation to a client) by, *inter alia*, (1) not knowing or following the USPTO signature rules; (2) presenting documents to the USPTO on behalf of Jingdai/ZJNT, Twinsun, and Kuabiaotong-referred clients that were signed in violation of the USPTO trademark signature rules, in violation of 37 C.F.R. § 11.101 of the USPTO Rules of Professional Conduct; and (3) not knowing that informed consent is to be obtained from the client prior to accepting compensation for representing a client from one other than the client;
- b. 37 C.F.R. § 11.103 (failing to act with reasonable diligence in representing a client) by, *inter alia*, presenting documents to the USPTO on behalf of Jingdai/ZJNT, Twinsun, and Kuabiaotong-referred clients that were signed in violation of the USPTO trademark signature rules;
- c. 37 C.F.R. § 11.104(a)(1) and (a)(2) (failing to inform the client of any decision or circumstance with respect to which the client's informed consent is required by the USPTO Rules of Professional Conduct and failing to consult with the client about the means to accomplish the client's objectives) by, *inter alia*, (1) not obtaining informed consent from Brand Mark Protect-referred clients to accept compensation from Brand Mark Protect; (2) not informing her Brand Mark Protect clients of the existence of the attorney-client relationship and not consulting with her Brand Mark Protect-referred clients about the means to accomplish her representation of them; (3) not communicating adequately with Brand Mark Protect-referred clients about their trademark applications; (4) not timely communicating with her Brand Mark Protect-referred clients about Brand Mark Protect's fraudulent scheme; and (5) not adequately communicating with Jingdai/ZJNT, Twinsun, and Kuabiaotong-referred clients about the actual or potential adverse consequences to their intellectual property rights in their pending applications that were signed in violation of the USPTO trademark signature rules;
- d. 37 C.F.R. § 11.104(b) (failing to explain a matter to the extent reasonably necessary to permit the client to make informed decisions regarding the representation) by, *inter alia*, (1) not adequately communicating with Jingdai/ZJNT, Twinsun, and Kuabiaotong-referred clients about the actual or potential adverse consequences to their intellectual property rights in their pending applications that were signed in violation of the USPTO trademark signature rules; (2) not adequately communicating with Brand Mark Protect-

referred clients about their trademark applications, the existence of the attorney-client relationship, or the means to accomplish her representation of them; and (3) not communicating in a timely matter with her Brand Mark Protect-referred clients about Brand Mark Protect's fraudulent scheme;

- e. 37 C.F.R. § 11.108(f)(1) (failing to obtain informed consent from the client prior to accepting compensation for representing the client from one other than the client) by, *inter alia*, accepting compensation from Brand Mark Protect for clients' fees without obtaining the informed consent from those clients;
- f. 37 C.F.R. § 11.503(a) and (b) (failing to fulfill responsibilities regarding non-practitioner assistants) by, *inter alia*, allowing, ordering, otherwise facilitating the presentation of documents to the USPTO on behalf of her Jingdai/ZJNT, Twinsun, and Kuabiao tong-referred clients that were signed in violation of the USPTO trademark signature rules;
- g. 37 C.F.R. § 11.804(c) (engaging in conduct involving misrepresentation) by, *inter alia*, allowing, ordering, otherwise facilitating the presentation of documents to the USPTO on behalf of her Jingdai/ZJNT, Twinsun, and Kuabiao tong-referred clients that were signed in violation of the USPTO trademark signature rules; and
- h. 37 C.F.R. § 11.804(d) (engaging in conduct prejudicial to the integrity of the federal trademark registration process) by, *inter alia*, (1) not knowing or following the USPTO signature rules; (2) presenting documents to the USPTO on behalf of her Jingdai/ZJNT, Twinsun, and Kuabiao tong-referred clients that were impermissibly signed.

Agreed-Upon Sanction

54. Based on the foregoing, it is hereby ORDERED that:

- a. Respondent shall be suspended from practice before the Office for a period of four (4) months commencing on the date of this Final Order;
- b. Respondent shall be granted limited recognition for a period of thirty (30) days, to conclude work on behalf of a client on any matters pending before the Office; and, if such work cannot be concluded, the practitioner shall so advise the client so that the client may make other arrangements;
- c. Respondent shall comply with 37 C.F.R. § 11.58;
- d. Respondent may satisfy her obligations under 37 C.F.R. § 11.58(c)(3)(i) for those clients who are domiciled in a foreign country and have immediate or prospective business before the Office in patent, trademark, or other non-patent matters by

emailing, in the client's native language, the requisite 37 C.F.R. § 11.58 notices and information (including a copy of this Final Order that has been correctly translated into the client's native language) to:

1. The email address for each client and, if applicable, the email address as set forth in the "Applicant's Information" portion of each client's trademark application, but only if such email address is an email address belonging to the client and one that Respondent reasonably believes to which the client has direct access (*i.e.*, not the email address belonging to a foreign referring entity);
 2. An email address belonging to the client and one that Respondent reasonably believes to which the client has direct access (*i.e.*, not the email address belonging to a foreign-domiciled third person or a foreign-domiciled entity who referred the matter to Respondent); or
 3. The foreign-domiciled third person or a foreign-domiciled entity who referred the matter to Respondent, but only if:
 - A. Respondent takes reasonable measures to ensure that the foreign-domiciled third person or a foreign-domiciled entity thereafter promptly forwards Respondent's email to the client with the translated Final Order attached and Respondent is copied on the forwarded email;
 - B. Respondent takes reasonable measures to learn from the foreign-domiciled third person or a foreign-domiciled entity that the client actually received the Respondent's email and translated Final Order forwarded to the client;
 - C. Respondent's affidavit submitted pursuant to 37 C.F.R. § 11.58(d) sets forth the details of her reasonable measures that are required by subparagraphs (3)(A) and (B) immediately above; and
 - D. Any petition for reinstatement filed by or on behalf of Respondent sets forth the details of her reasonable measures that are required by subparagraphs (3)(A) and (B) immediately above;
- e. Respondent shall be placed on probation commencing on the date of this Final Order and continuing for twelve (12) months from the date of an order granting Respondent's petition for reinstatement to practice before the Office;
- f. (1) if the OED Director is of the good-faith opinion that Respondent, during Respondent's probationary period, failed to comply with any provision of the Agreement, this Final Order, or any provision of the USPTO Rules of Professional Conduct, the OED Director shall:

(A) issue to Respondent an Order to Show Cause why the USPTO Director should not enter an order immediately suspending the Respondent for up to an additional twelve (12) months for the violations set forth in the Joint Legal Conclusions, above;

(B) send the Order to Show Cause to Respondent at the last address of record Respondent furnished to the OED Director pursuant to subparagraph i., below; and

(C) grant Respondent fifteen (15) days to respond to the Order to Show Cause;

and

(2) in the event that after the 15-day period for response and consideration of the response, if any, received from Respondent, the OED Director continues to be of the good-faith opinion that Respondent, during Respondent's probationary period, failed to comply with the USPTO Rules of Professional Conduct, this Final Order, or any provision of the USPTO Rules of Professional Conduct, the OED Director shall:

(A) deliver to the USPTO Director: (i) the Order to Show Cause;
(ii) Respondent's response to the Order to Show Cause, if any; and
(iii) argument and evidence supporting the OED Director's position; and

(B) request that the USPTO Director enter an order immediately suspending Respondent for up to an additional twelve (12) months for the violations set forth in the Joint Legal Conclusions above;

(C) send the documents delivered to the USPTO Director to Respondent at the last address of record Respondent furnished to the OED Director pursuant to subparagraph i., below;

- g. Nothing herein shall prevent the OED Director from seeking discrete discipline for any misconduct that formed the basis for an Order to Show Cause issued pursuant to the preceding subparagraph;
- h. In the event the Respondent seeks a review of any action taken pursuant to subparagraph (f), above, — including action by the USPTO Director suspending Respondent for up to twelve (12) months — such review shall not operate to postpone or otherwise hold in abeyance the suspension;
- i. As a condition of probation, Respondent shall notify the OED Director in writing within twenty-one (21) days of the date of this Final Order of a postal address, an

email address, and a telephone number to be used by the OED Director for purposes of corresponding and communicating with Respondent regarding subparagraph f., above;

- j. As a condition of probation, Respondent shall notify the OED Director in writing of any change in the postal address, the email address, and the telephone number to be used by the OED Director for purposes of corresponding and communicating with respondent regarding subparagraph f., above, within thirty (30) days of the date of any such change;
- k. As a condition of her probation, Respondent shall, at least on a bi-weekly basis, (i) search the USPTO's online trademark search system (currently located at <https://tmsearch.uspto.gov/search/search-information>) for trademark applications identifying her as the attorney of record, using the search phrase format AT: firstname AND AT: lastname AND FD: [YYYYMMDD TO YYYYMMDD], and (ii) promptly inform in writing the USPTO Office of Trademark Examination Policy of each trademark document identifying her as the attorney of record that was filed without her knowledge or consent;
- l. As a condition of her probation, Respondent shall, at least every two months, submit a written report to the OED Director (1) stating she has completed the bi-weekly searches of the USPTO's online trademark search system database and (2) either (i) stating that she identified no applications or other trademark filing in which she was named as the attorney of record, or (ii) providing copies of correspondence sent to the USPTO Office of Trademark Examination Policy as described in the preceding subparagraph identifying the applications or other trademark documents in which she is identified as the attorney of record filed with the USPTO without her knowledge or consent;
- m. Effective the date of the expiration of the 30-day period of limited recognition afforded to Respondent under 37 C.F.R. § 11.58(f), the USPTO is hereby authorized to disable or suspend any USPTO.gov accounts registered to Respondent as of the date of this Final Order approving the Agreement (including all accounts that Respondent has ever established, sponsored, used in connection with any trademark matter);
- n. Respondent shall remain suspended from practice before the Office in patent, trademark, and other non-patent matters until the OED Director grants Respondent's petition for reinstatement pursuant to 37 C.F.R. § 11.60;
- o. Respondent's name shall be dissociated from any Customer Number(s) and USPTO verified Electronic System account(s), and Respondent shall not apply for, obtain, nor have her name added to a USPTO Customer Number or a USPTO verified Electronic system account unless and until she is reinstated to practice before the USPTO;
- p. As a condition of being reinstated to practice before the USPTO, Respondent shall:
 - (1) provide to the OED Director a written declaration, affidavit or statement in compliance with 28 U.S.C. § 1746 signed by Respondent stating

that she enrolled in, virtually attended, and completed each of the eight modules comprising the USPTO's Trademark Basics Boot Camp (located on the USPTO website at <https://www.uspto.gov/about-us/events/trademark-basics-boot-camp>);

(2) provide to the OED Director a written declaration, affidavit, or statement in compliance with 28 U.S.C. § 1746 signed by Respondent stating that she has thoroughly reviewed all provisions of the Trademark Manual of Examining Procedure, including but not limited to, the provisions pertaining to the USPTO's signature requirements; and

(3) provide to the OED Director a written declaration, affidavit, or statement in compliance with 28 U.S.C. § 1746 signed by Respondent stating she has successfully completed two (2) hours of continuing legal education credit in ethics/professional responsibility;

- q. Respondent shall cooperate fully with the USPTO in any present or future inquiry into any third-party entities (*e.g.*, foreign representatives or foreign associates) or person(s) with whom Respondent worked, or was solicited to work, in connection with patent or trademark documents submitted to the USPTO;
- r. The OED Director shall electronically publish this Final Order at the OED's electronic FOIA Reading Room, which is publicly accessible through the Office's website at: <https://foiadocuments.uspto.gov/oed/>;
- s. The OED Director shall publish a notice in the *Official Gazette* that is materially consistent with the following:

Notice of Suspension and Probation

This notice concerns Ms. Tamar Toledano of New York, New York, who is authorized to practice before the United States Patent and Trademark Office ("USPTO") in trademark and other non-patent matters (Registration No. 5781505). Ms. Toledano is not otherwise authorized to practice before the Office in patent matters. Ms. Toledano has been suspended for a period of four (4) months for violating 37 C.F.R. §§ 11.101; 11.103; 11.104(a)(1), (a)(2), and (b); 11.108(f)(1); 11.503(a) and (b); 11.804(c) and 11.804(d) of the USPTO Rules of Professional Conduct. The violations are predicated on Ms. Toledano's trademark practice where she allowed others to sign her name to trademark documents filed at the Office, failed to communicate with clients regarding their representation, failed to obtain informed consent to be paid by a third party, and failed to timely inform clients about fraudulent schemes of others. Ms. Toledano has also been placed on probation.

As of February 2024, Ms. Toledano was the attorney of record on approximately 4,800 total U.S. trademark applications. She received many trademark referrals from online sources, such as UpWork, resulting in her affiliation with several foreign-

based companies: Zhengzhou Jingdai Network Technology Co., Ltd., 郑州鲸代网络科技有限公司 (“Jingdai/ZJNT”) located in Zhengzhou Area (Zhengdong), Henan Pilot Free Trade Zone, China; Twinsun Intellectual Property Office, 雙盛智慧財產權事務所 (“Twinsun”) located in Shenzhen, Guangdong, China; and Zhengzhou Kuabiao Tong Technology Co., Ltd., 鄭州快標通科技股份有限公司 (“Kuabiao Tong”) located in Zhengzhou, Henan, China; and Brand Mark Protect, which is believed to be located in Karachi, Pakistan.

Ms. Toledano represented clients before the Office in trademark matters without understanding adequately the USPTO trademark signature rules or direction set forth in the USPTO Trademark Manual of Examining Procedure (“TMEP”). She allowed her non-attorney staff and employees of foreign-based companies that referred trademark clients to her to impermissibly enter her signature on trademark applications and other documents including declarations presented to the USPTO, where she was the named signatory. Specifically, Ms. Toledano authorized other individuals to enter her signature into a total of approximately 2,726 U.S. trademark application filings. She further failed to adequately or timely communicate with her clients referred by Jingdai/ZJNT, Twinsun, and Kuabiao Tong regarding improper signatures on their trademark applications.

Ms. Toledano also had a business relationship with Brand Mark Protect, which is believed to be located in Pakistan. Brand Mark Protect went by many different names, including: Trademark Supreme, Xpress Trademark, Trademark Pioneer, and Trademark Paramount. Ms. Toledano handled approximately 259 trademark matters for clients referred to her by Brand Mark Protect. To the best of Ms. Toledano’s knowledge, all of Brand Mark Protect’s trademark applicant customers referred to her were domiciled in the United States. Ms. Toledano acknowledged that she did not directly communicate with her Brand Mark Protect-referred clients prior to filing their applications. Ms. Toledano was also paid by Brand Mark Protect for legal services provided for clients referred to her by Brand Mark Protect. As a result, she did not inform her clients regarding the existence of an attorney-client relationship and did not obtain informed consent to accept compensation from one other than the client. In addition, after she learned that Brand Mark Protect was engaging in a scheme to charge fraudulent trademark fees against trademark applicants, including her clients, Ms. Toledano did not timely inform her trademark clients about Brand Mark Protect’s fraudulent scheme.

Ms. Toledano, *inter alia*, (1) did not possess an adequate understanding of the USPTO trademark signature and certification rules; (2) did not possess an adequate understanding of the U.S. Counsel Rule; (3) presented trademark documents to the USPTO that were not certified and signed in compliance with USPTO trademark signature rules; (4) directed, allowed, or otherwise facilitated non-practitioner assistants to enter her trademark client signatures on documents filed with the USPTO; (5) did not adequately consult with or communicate with her referred trademark clients, to include failing to inform her clients of the existence of the attorney-client relationship and not timely informing Brand Mark Protect-referred

clients about Brand Mark Protect's fraudulent scheme; and (6) did not obtain informed consent to be paid by third parties. Ms. Toledano has not been previously disciplined by the USPTO, and she represents that she has never been the subject of professional discipline by any court or state bar.

Practitioners who are engaged in practice before the USPTO in trademark matters are reasonably expected to know the USPTO rules of trademark practice, including the USPTO trademark signatures rules. If the signature fails to comply with 37 C.F.R. § 2.193(a) or (e) because it was entered by someone other than the named signatory or not signed by a proper person, the trademark may be subject to cancellation. *See* 84 Fed. Reg. at 31498 (stating that "[i]f signed by a person determined to be an unauthorized signatory, a resulting registration may be invalid."). *See also In re Dermahose Inc.*, 82 U.S.P.Q.2d 1793 (T.T.A.B. 2007); *In re Cowan*, 18 U.S.P.Q.2d 1407 (Com'r Pat. & Trademarks 1990). The integrity of the federal trademark registration process is adversely affected when trademark filings are impermissibly signed and certified then filed with the USPTO.

The USPTO has published ample, readily available information for practitioners regarding what is competent practice before the Office in trademark matters. In particular, the agency maintains a webpage regarding important trademark information including specific links to relevant laws, rules, regulations, and rulemaking. (*Available at www.uspto.gov/trademarks*)

The agency publishes online and regularly updates its Trademark Manual of Examining Procedure ("TMEP") (*Available at tmept.uspto.gov/RDMS/TMEP/current*). The TMEP is a guidance document that provides trademark practitioners, *inter alia*, with a reference work on the practices and procedures relative to prosecution of applications to register marks in the USPTO. For example, TMEP § 611.01 provides clear guidance on the agency's signature rules, including that (a) the person(s) identified as the signatory must personally sign the document (e.g., a paralegal, legal assistant, or secretary may not sign or enter the name of an attorney or other authorized signatory), (b) a person may not delegate their authority to sign, and (c) no person may use document-signing software to enter or electronically generate someone else's signature.

The USPTO has published ample information about the U.S. Counsel Rule. *See, e.g., Requirement of U.S. Licensed Attorney for Foreign Trademark Applicants and Registrants*, 84 FR 31498 (Final Rule) (July 2, 2019); 37 C.F.R. § 2.11 (Requirement for representation); TMEP § 601. There is also ample, readily available information for practitioners regarding what is ethical practice before the Office in trademark matters. For example, the USPTO has a searchable OED FOIA webpage (found at <https://foiadocuments.uspto.gov/oed>).

The USPTO has informed attorneys that sponsoring foreign agents and attorneys who are not supervised support staff may violate the trademark rules and undermine the trademark register. *See, e.g., Requiring Identity Verification for Attorney- Sponsored Accounts*, 88 FR 60667 (Sept. 5, 2023). Further, attorneys who sponsor USPTO.gov

accounts in connection with their trademark practice should regularly and frequently search the USPTO's online trademark search system for applications naming him or her as the current attorney of record for applications filed over a given period of time. The attorney can use the search phrase AT: firstname AND AT: lastname AND FD: [YYYYMMDD TO YYYYMMDD] and then find unauthorized filings by comparing the search results to the list of actual application filings kept by the attorney. If unauthorized filings are found, the attorney should promptly inform the USPTO via TMScams@uspto.gov.

Therefore, practitioners who represent applicants, registrants, or others before the USPTO in trademark matters — including those who serve as U.S. counsel for foreign-domiciled clients — are reasonably expected to know (a) the applicable trademark prosecution rules, (b) the provisions of the USPTO Rules of Professional Conduct implicated by such representation, and (c) the potential disciplinary consequences when such provisions of the USPTO Rules of Professional Conduct are violated. The USPTO Director has issued numerous orders imposing discipline on trademark practitioners who violated the USPTO Rules of Professional Conduct based on not complying with USPTO trademark signature rules, not adequately supervising non-attorneys, and/or not fulfilling obligations under 37 CFR § 11.18 to conduct an inquiry reasonable under the circumstances in support of factual assertions made in trademark documents presented to the USPTO, including:

In re Erik B. Jensen, Proceeding No. D2009-46 (Feb. 18, 2010 Final Order)
In re Allen A. Meyer, Proceeding No. D2010-41 (Sep. 7, 2011 Final Order)
In re Shia, Bang-er, Proceeding No. D2010-41 (April 22, 2015 Initial Decision)
In re Shia, Bang-er, Proceeding No. D2010-41 (Mar. 4, 2016 Final Order)
In re Shia, Bang-er, Proceeding No. D2010-41 (Aug. 1, 2016 Order on Reconsideration)
In re Matthew Swyers, Proceeding No. D2016-20 (Jan. 26, 2017 Final Order)
In re Reyner Meikle, Proceeding No. D2019-17 (Mar. 21, 2019 Final Order)
In re Travis Crabtree, Proceeding Nos. D2018-31 & -47 (Apr. 25, 2019 Final Order)
In re Heather Sapp, Proceeding No. D2019-31 (May 15, 2019 Final Order)
In re Deborah Sweeney, Proceeding No. D2019-33 (June 19, 2019 Final Order)
In re Anita Mar, Proceeding No. D2019-11 (Aug. 2, 2019 Final Order)
In re Renuka Rajan, Proceeding No. D2019-30 (Sep. 5, 2019 Final Order)
In re Thomas C. Caraco, Proceeding No. D2019-50 (Sep. 12, 2019 Final Order)
In re Lenise Williams, Proceeding No. D2019-23 (Sep. 20, 2019 Final Order)
In re Charles Caldwell II, Proceeding No. D2020-12 (Mar. 17, 2020 Final Order)
In re Jamie Bashtanyk, Proceeding No. D2020-09 (Apr. 17, 2020 Final Order)
In re Yiheng Lou, Proceeding No. D2021-04 (May 12, 2021 Final Order)
In re Andrei Mincov, Proceeding No. D2020-30 (Aug. 23, 2021 Final Order)
In re Devasena Reddy, Proceeding No. D2021-13 (Sep. 9, 2021 Final Order)
In re Bennett David, Proceeding No. D2021-08 (Sep. 24, 2021 Final Order)
In re Di Li, Proceeding No. D2021-16 (Oct. 7, 2021 Final Order)
In re Tony C. Hom, Proceeding No. D2021-10 (Dec. 17, 2021 Final Order)
In re Elizabeth Yang, Proceeding No. D2021-11 (Dec. 17, 2021 Final Order)

In re Elizabeth Pasquine, Proceeding No. D2019-39 (Aug. 13, 2021 Initial Decision)
In re Elizabeth Pasquine, Proceeding No. D2019-39 (Mar. 28, 2022 Final Order)
In re Yi Wan, Proceeding No. D2022-04 (Apr. 1, 2022 Final Order)
In re Kathy Hao, Proceeding No. D2021-14 (Apr. 27, 2022 Final Order)
In re Weibo Zhang, Proceeding No. D2022-16 (July 11, 2022 Final Order)
In re Daoyou Liu, Proceeding No. D2022-03 (Aug. 9, 2022 Final Order)
In re Zhihua Han, Proceeding No. D2022-23 (Jan. 6, 2023 Final Order)
In re Jingfeng Song, Proceeding No. D2023-10 (May 1, 2023 Final Order)
In re Kevin R. Gallagher, Proceeding No. D2023-28 (June 23, 2023 Final Order)
In re Puja Jabbour, Proceeding No. D2023-33 (Sep. 6, 2023 Final Order)
In re Jing Wang, Proceeding No. D2023-38 (Nov. 21, 2023 Final Order)
In re Yue Niu, Proceeding No. D2023-32 (Jan. 3, 2024 Final Order)
In re Grace Lee Huang, Proceeding No. D2023-37 (Jan. 8, 2024 Final Order)
In re Ryan A. Bethell, Proceeding No. D2019-42 (Nov. 20, 2023 Initial Decision)
In re Ryan A. Bethell, Proceeding No. D2019-42 (Jan. 27, 2024 Final Order)
In re Francis Koh, Proceeding No. D2024-07 (Feb. 7, 2024 Final Order)
In re Che-Yang Chen, Proceeding No. D2024-01 (Mar. 20, 2024 Final Order)
In re Julian A. Haffner, Proceeding No. D2023-35 (May 21, 2024 Final Order)
In re Harrison B. Oldham, Proceeding No. D2024-11 (May 29, 2024 Final Order)
In re Wayne Harper, Proceeding Nos. D2020-10 & D2024-15 (Aug. 13, 2024 Final Order)
In re Lan Yu, Proceeding No. D2024-24 (Aug. 20, 2024 Final Order)
In re Ruth K. Khalsa, Proceeding No. D2019-38 (Sep. 5, 2024 Final Order)
In re Weitao Chen, Proceeding No. D2024-21 (Sep. 11, 2024 Final Order)
In re Alexis Campbell, Proceeding No. D2019-41 (Oct. 10, 2024 Final Order)
In re Jie Luo, Proceeding No. D2024-02 (Oct. 25, 2024 Final Order)
In re Qinghe Liu, Proceeding No. D2023-39 (Nov. 21, 2024 Final Order)
In re Angus Ni, Proceeding No. D2024-20 (Dec. 19, 2024 Final Order)
In re Afamefuna Okeke, Proceeding No. D2024-18 (Jan. 6, 2025 Final Order)
In re Nyall S. Engfield, Proceeding No. D2025-12 (Mar. 10, 2025 Final Order)
In re Shan Zhu, Proceeding No. D2024-19 (Mar. 18, 2025 Final Order)
In re Phillip T. Horton, Proceeding No. D2025-15 (Mar. 20, 2025 Final Order)
In re Andrew S. Rapacke, Proceeding No. D2025-16 (Mar. 20, 2025 Final Order)
In re Hao Ni, Proceeding No. D2025-14 (Mar. 31, 2025 Final Order)
In re Curtis Ray Hussey, Proceeding No. D2025-19 (May 14, 2025 Final Order)
In re Xiaofang Zhong, Proceeding No. D2025-18 (May 21, 2025 Final Order)
In re Evelyn Ufomadu, Proceeding No. D2025-20 (June 25, 2025 Final Order)

Trademark practitioners should be mindful that the USPTO trademark signature rule requiring the named signatory to enter his or her signature on a trademark document to be presented to the Office is a substantive rule, not a mere technical requirement. *In re Stelcore Management Services, LLC*, 2025 Comm'r. Pat.*4 (USPTO Show Cause Order May 5, 2025). Therefore, a failure of a named signatory to enter his or her signature on a trademark document potentially adversely affects a trademark applicants' and trademark registrants' intellectual property rights as well as the integrity of the USPTO trademark registration process.

This action is the result of a settlement agreement between Ms. Toledano and the OED Director pursuant to the provisions of 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26. Disciplinary decisions involving practitioners are posted for public reading at the Office of Enrollment and Discipline Reading Room accessible at: <https://foiadocuments.uspto.gov/oed/>.

- t. Nothing in the Agreement or this Final Order shall prevent the Office from considering the record of this disciplinary proceeding, including this Final Order: (1) when addressing any further complaint or evidence of the same or similar misconduct concerning Respondent brought to the attention of the Office and (2) in any future disciplinary proceeding against Respondent (i) as an aggravating factor to be taken into consideration in determining any discipline to be imposed, and/or (ii) to rebut any statement or representation by or on Respondent's behalf; and
- u. Respondent waives all rights to seek reconsideration of this Final Order under 37 C.F.R. § 11.56, waives the right to have this Final Order reviewed under 37 C.F.R. § 11.57, and waives the right otherwise to appeal or challenge this Final Order in any manner.

Users, Choe,
Tricia

Digitally signed by Users,
Choe, Tricia
Date: 2025.09.03 08:14:56
-04'00'

Tricia Choe
Associate General Counsel for General Law
United States Patent and Trademark Office

Date

on delegated authority by

Coke Morgan Stewart
Acting Under Secretary of Commerce for Intellectual Property and
Acting Director of The United States Patent and Trademark Office

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing Final Order was sent, on this day, to the parties in the manner indicated below:

Via email:

Michael E. McCabe, Jr.
McCabe & Ali, LLC
mike@mccabeali.com
Counsel for Respondent

Via email:

John D.V. Ferman
john.ferman@uspto.gov
Counsel for the OED Director

9/3/2025

Date



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